

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404854	PURDIE vs PETERSON	MOTION FOR TERMINATING SANCTIONS

Tentative Ruling: The Court DENIES the Motion.

The discovery responses have finally been served and sanctions paid, albeit with a delay and change in the defense counsel. There is no showing that the violation was willful or preceded by a history of abuse such that terminating sanctions are warranted here.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406315	EDWARDS vs HISTORIC MISSION INN CORPORATION	DEMURRER ON 2ND AMENDED COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT

Tentative Ruling: The hearing on the demurrer is continued to October 5, 2026 at 8:30 a.m., because, in addition to an untimely opposition, the Court finds the meet and confer inadequate.

Defendant is ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrers. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for her position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:

- (1) vacate the hearing on the demurrer, and file an Answer;
- (2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
- (3) file with the court a declaration stating how the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., §§ 430.41(a)(3).)

No further briefing will be allowed.